



City of Omaha
Jean Stothert, Mayor

August 16, 2022



Todd R. Schmaderer
Chief of Police

Omaha Police Department
"To Serve and Protect"
505 South 15th Street
Omaha, Nebraska 68102-2769
phone (402) 444-5600
fax (402) 444-4913
<https://police.cityofomaha.org/>

Dear J Ader,

On behalf of Chief of Police Todd Schmaderer, I am responding to your request for Omaha Police Department records. In your request dated August 9, 2022 you requested the following information:
All documentation on ShotSpotter (shotspotter.com) including, but not limited to, the following:

- Initial Bid Documents
- Current and previous contracts with ShotSpotter
- Requests for Proposals
- Memorandum(s) of Understanding
- Any/all privacy impact assessments
- Any/all instructional materials or presentations
- Any/all brochures or advertisements received from ShotSpotter
- Use policies and standard operating procedures
- Data retention policies
- Letters of Interest
- Usage policies
- Any/all informal agreements that reference "ShotSpotter" or otherwise guide its use or the relationship between

this agency and the provider or developer of the products.

Your request is made pursuant to the provisions of the Nebraska Public Records Act. This is the response required by NEB. REV. STAT. § 84-712, et seq.

The Nebraska public records statute allows persons the right to examine public records in the possession of public agencies during normal agency business hours, to make memorandum and abstracts from those public records, and to obtain copies of public records in certain circumstances. The statute does not require a public agency to review documents and create abstracts or other lists, to answer questions, or to create documents that do not otherwise exist. See NEB.REV.STAT. § 84-712. Although the Nebraska public records statutes provided for access to public documents, such access is not absolute. The statutes also provide for exceptions to disclosures by express and special provisions; there are 21 categories of documents that may be kept confidential from the public at the discretion of the agency involved. See Neb. Rev. Stat. § 84-712.05.

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All of the ShotSpotter contracts were presented at the Omaha City Council Public Readings and are considered public record. A copy of the current and the previous contracts can also be accessed through the below link. Any information not contained within the public contract will have to be obtained directly from ShotSpotter, Inc. through a subpoena.

<https://images.cityofomaha.org/WebLink/Search.aspx?dbid=0&repo=CityClerk&cr=1&searchcommand=%7BLF%3ABasic%20~%3D%20%22shotspotter%22%2C%20option%3D%22DFANLT%22%7D>

Section 84-712.03 of the Nebraska Revised Statutes may grant you the right to administrative or judicial review of this response. Please consult the statute for further information. Chief of Police Todd Schmaderer is the public employee responsible for the decision to deny a portion of your request.

Thank you for your patience. If you have any questions about the legal basis for this response, please contact me at 402.444.6089.

Sincerely,

A handwritten signature in blue ink, appearing to read "Anna Colón".

Deputy Chief Anna Colón
Professional Oversight Bureau

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